

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. SEC.
99-19-71(4)

IN THE COURT OF , MISSISSIPPI
(WRITE THE COURT IN WHICH THE CASE WAS PENDING - JUSTICE, COUNTY, CIRCUIT OR
MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

STATE OF MISSISSIPPI

v.

Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No.

(copy the cause number from the court record; where the court assigns a new number for the
expungement it is supplied at filing)

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. Sec.
99-19-71(4)

The petitioner, Bartholomew-Emmanuel de la Cruz-Featherstone, petitions this Court for an order
expunging the record of the case described below, and states:

FIRST. Miss. Code Ann. Sec. 99-19-71(4) provides: 'Upon petition therefor, a justice, county, circuit or
municipal court shall expunge the record of any case in which an arrest was made, the person arrested was
released and the case was dismissed or the charges were dropped or there was no disposition of such case,
or the person was found not guilty at trial.'

SECOND. The identifying facts of the case, each taken from the court record:

Petitioner's date of birth: 1961-12-31

What the petitioner was charged with, worded as the court record words it, with the Mississippi Code
section where the record states one:

.....
.....

Date of the offence alleged:

.....

Date of arrest or citation:

.....

Agency that made the arrest or issued the citation:

.....

That agency's own case or citation number, where the record states one:

.....
Date on which the case ended, from the record:
.....

THIRD. The case ended without a conviction, in the statutory category marked below. Mark EXACTLY ONE, and only the one your own court paperwork shows; nothing is marked for you, and an entry such as 'passed to the file' or 'retired to the file' is a reason to stop and get advice rather than to mark any box:

- ☐ An arrest was made, the petitioner was released, and the case was dismissed.
- ☐ The charges were dropped.
- ☐ There was no disposition of the case.
- ☐ The petitioner was found not guilty at trial.

FOURTH. Where a grand jury returned an indictment in the case, and only then, its date and court are stated here from the record (leave blank where the case was never indicted; most are not):
.....

FIFTH. Subsection (4) imposes no waiting period, no completion requirement and no first-offender requirement, and none is asserted here. The one-felony-per-lifetime cap of subsection (2)(a) applies to felony conviction expungement only and is not spent by this petition.

SIXTH. The petitioner therefore requests that the Court enter an order expunging the record of the case described above, as Sec. 99-19-71(4) directs, with a nonpublic record retained by the Mississippi Criminal Information Center solely for the purpose Sec. 99-19-71(3) states.

I declare that the facts stated in this petition are true and correct.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Bartholomew-Emmanuel de la Cruz-Featherstone

MAILING ADDRESS: 15522 Lower Delta Bottomland Access Road, Building 7, Unit 41-B, Greenwood, Mississippi 38930-6604

TELEPHONE: (769) 555-0102 ext. 8846

EMAIL: bartholomew.emmanuel.de.la.cruz.featherstone@longmailexample.org

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal

PROPOSED ORDER OF EXPUNGEMENT

IN THE COURT OF , MISSISSIPPI
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PROPOSED ORDER OF EXPUNGEMENT

(This order is tendered with the petition for the Court's consideration, which is Mississippi practice. Every
finding below is a proposal for the Court to make; nothing in it is an assertion of fact by the preparer, and
nothing on this page is completed for the Court.)

THIS CAUSE came before the Court on the petition of Bartholomew-Emmanuel de la Cruz-Featherstone
for expungement of the record of a case under Miss. Code Ann. Sec. 99-19-71(4), and the Court, having
considered the petition, would find that the case falls within Sec. 99-19-71(4): an arrest was made, the
person arrested was released, and the case was dismissed or the charges were dropped or there was no
disposition of the case, or the person was found not guilty at trial.

IT IS THEREFORE ORDERED that the record of the case described in the petition is expunged, and that
every person and agency keeping an official record of the arrest or the case shall expunge it, including the
following, each named by the petitioner from the case record:

Agency that made the arrest or issued the citation, as the order must direct it:

.....

Sheriff's department of the county, where its records carry the case:

.....

Any other person or agency keeping an official record of the case:

.....

PROVIDED that the existing records of fingerprints are excepted from this order, as Miss. Code Ann. Sec.
99-19-71 provides; that the Mississippi Criminal Information Center shall retain a nonpublic record solely
for the purpose of determining, in subsequent proceedings, whether the person is a first offender; and that
upon entry of this order the petitioner is restored, in contemplation of law, to the status the petitioner
occupied before the arrest, and shall not be held thereafter guilty of perjury for failure to recite the arrest,
except as Sec. 99-19-71(3) provides for first-offender determinations.

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SO ORDERED.

ENTERED, this the day of,

JUDICIAL OFFICER OF THE COURT

(the Court alone completes, signs and enters this order)

APPROVED AS TO FORM, for the prosecuting authority:

.....

(some districts expect the prosecuting authority to approve the order as to form before it is presented; this block is never completed by the preparer and is never pre-signed)

CERTIFICATE OF SERVICE

IN THE COURT OF , MISSISSIPPI
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CERTIFICATE OF SERVICE

I, Bartholomew-Emmanuel de la Cruz-Featherstone, certify that a true and correct copy of the Petition for
Expungement of Criminal Record and of the proposed Order of Expungement in this cause was delivered
to the prosecuting authority named below, contemporaneously with the filing of the petition:

Prosecuting authority served - for a circuit court case the district attorney for the circuit district, for a
county, justice or municipal court case the county or municipal prosecuting attorney (write the office as
the court record names it):

.....

Mailing address at which that office was served:

.....

.....

Manner of delivery (mark the one used):

☐ By United States mail

☐ By hand delivery

DATE OF DELIVERY OF THE COPY

SIGNATURE OF PETITIONER

(This page is completed and signed by the petitioner when the copy actually goes out. A date or a
signature written before the copy goes out would be false.)

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-
acquittal

EXHIBIT CHECKLIST

Prepared for: Bartholomew-Emmanuel de la Cruz-Featherstone

Attach these exhibits to the petition. Each is named here and obtained by you; nothing is obtained, inspected or authenticated for you.

EXHIBIT A - IN EVERY CASE. A certified copy of the disposition or sentencing order showing how the case ended, from the records office of the court that heard the case. Mississippi has no central portal and each court holds its own file, so identify the right court first.

EXHIBIT B - ONLY WHERE THE CASE WAS INDICTED. A copy of the indictment, from the circuit records office of the county. Attach it only if a grand jury actually returned an indictment; most cases are never indicted, and the petition pleads an indictment only where one exists.

ADVISABLE:

- The docket sheet for the case, from the records office of the court that heard the case. It shows exactly how the case ended, and its wording matters: 'passed to the file' or 'retired to the file' is a reason to stop and get advice.
- Your own Mississippi criminal history record, from the Mississippi Criminal Information Center, so you can see every case on your record before you file.

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FILING INSTRUCTIONS

This packet is prepared for expunging the record of a Mississippi case that did not end in a conviction, under Miss. Code Ann. Sec. 99-19-71(4).

Prepared for: Bartholomew-Emmanuel de la Cruz-Featherstone

WHAT YOU DO, IN ORDER

STEP ONE. Identify the correct court and county first. Mississippi has four trial court levels - justice, county, circuit and municipal - and the petition goes to the court in which the case was pending.

STEP TWO. Ask that court's records office for the case file, the docket sheet, and a certified copy of the order showing how the case ended. Copy the docket wording exactly; do not paraphrase it.

STEP THREE. Call that records office before filing and ask whether that court has its own preferred petition or order form or any additional requirement. Mississippi has no statewide form and practice varies by county and circuit district.

STEP FOUR. Fill in every dotted blank this packet's participant instructions list, from the records, and mark exactly one statutory disposition category - only the one your paperwork shows.

STEP FIVE. Sign and date the petition yourself.

STEP SIX. File the petition, with the proposed order and the certificate of service, with the court in which the case was pending, and confirm the filing fee first. No fee amount is published in this packet: whether Sec. 99-19-72's fee reaches a subsection (4) petition at all is a recorded open question - there is no conviction to expunge - and county practice differs, so ask the court's records office for the amount, and for any pauper's-affidavit route if you cannot pay.

STEP SEVEN. Deliver a copy of the petition and the proposed order to the prosecuting authority contemporaneously with filing - for a municipal court case the city prosecutor, not the district attorney - and complete the certificate of service when the copy actually goes out. The ten days' written notice in Sec. 99-19-71(2)(b) belongs to the felony conviction subsection and is not imported here, but some districts expect notice and prosecutor approval as local practice.

STEP EIGHT. Expect that some districts want the district attorney to approve the order as to form before the judicial officer signs. That is a negotiation this packet does not conduct for you.

STEP NINE. After the order issues, obtain certified copies and deliver them to every agency named in the order.

WHAT THE ORDER DOES, FROM THE RECORD

- Relief under subsection (4) is mandatory on the statute's own words - 'shall expunge' - once the case falls in a statutory category.
- Fingerprint records are excepted from expungement.
- The Mississippi Criminal Information Center keeps a nonpublic record solely for first-offender determinations in subsequent proceedings.
- An employer may still ask whether an order of expunction has been entered.
- This petition does not spend the one-felony-per-lifetime cap, which belongs to felony conviction expungement under subsection (2)(a).

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- the disposition is ambiguous on the docket - particularly 'passed to the file', 'retired to the file', or a remand;
- the case moved between courts and it is unclear where it was pending;
- this was a nonadjudication, a pretrial intervention programme, or an intervention or drug court, which end differently and route differently;
- a charge arising from the same events is still pending;
- anyone charged with you has a case that is still open;
- the district attorney declines to approve the order as to form;
- you are not a United States citizen - a non-conviction disposition can still carry immigration consequences.

WHAT THIS PACKET DOES NOT TELL YOU

- The filing fee amount, and whether Sec. 99-19-72's fee reaches a subsection (4) petition in this court. The records office of the court that heard the case is the authority that can answer both.
- Whether your court requires verification or notarization of the petition. Neither archived model is verified or notarized and the question is unresolved, so the petition carries a simple truth statement; the same office can say whether that court expects more.
- Your court's own preferred forms or local requirements, which vary by county and district. Ask before you file.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings and process pages. Mississippi publishes no statewide expungement form, which is why these pages are composed. It is not legal advice, it is not filed for you, and it does not decide the classification of an ambiguous docket entry.

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